

OREGON STATE HOSPITAL

POLICY

SECTION 2: Clinical Support

POLICY: 2.013

SUBJECT: Electronic Health Record Access

POINT PERSON: Health information Director

APPROVED: Sara Walker, MD

Interim Superintendent



DATE: JULY 17, 2024

SELECT ONE: ☐ New policy

☐ Minor/technical revision of existing policy

☒ Reaffirmation of existing policy

☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

A. Oregon State Hospital (OSH) will provide limited access to a patient's medical record via the electronic health record (EHR) to those with a "need to know", while maintaining compliance with appropriate regulatory bodies and the Health Insurance Portability and Accountability Act (HIPAA) rules and standards

B. This policy applies to all OSH staff.

II. POLICY

A. Before access will be granted, a sponsor seeking access for any person to any of OSH's EHR information must verify the following forms are complete and submitted before or on the first day of the requested access date:

1. ODHSIOHA Office of Information Services Individual Access Request (MSC 0786),
2. OSH Confidentiality and Access Agreement (OSH-STK 76113), and
3. any additional paperwork required to process and address security and firewall-related issues.

B. Each sponsor is responsible to verify access rights are modified or deleted by submitting the MSC 0786 form as the user's role changes or if they leave OSH.

C. The Health Information (HI) Director or designee will determine approval for exceptions to a standard user role dependent upon the level of access

required for the position.

1. The HI Director or designee may either deny or grant access on a case-by-case basis. Consideration will include at minimum:
 - a. level of security risk, including contract verification and Information Security and Privacy Office (ISPO) access agreement;
 - b. physical environment, including remote access;
 - c. training and role of the requestor; and
 - d. HIPAA-related principles of “need to know” and “minimum necessary.”
 2. If access is granted, an appropriate user role must be specified.
- D. A new EHR user who attends standard EHR training through New Employee Orientation (NEO) must also complete the appropriate level of training related to the assigned user role.
1. The user role will determine the level of access and training requirements.
 2. Training must include at least the following:
 - a. the EHR and access to EHR data, reports, or screens; and
 - b. privacy and security of protected health information.
 3. The Learning and Development Department (L&DD) will update the Centralized Personnel Database (CPD) with the completed training information.
- E. Exceptions to EHR standard training must be coordinated with L&DD.
- F. Anyone who learns of misuse or inappropriate access to EHR must report the misuse or inappropriate access as indicated in Oregon Health Authority (OHA) policy ODHS/OHA 100-014, “Report and Response to Privacy Incidents”, including reporting to Human Resources, the sponsor, and the Health Information Manager.
1. The user’s access may be suspended until further investigation is complete.
 2. The HI Director has final authority to allow or terminate access.
- G. Deactivation of a user account must be done upon request or at the end of employment upon notification by the updated Individual Access Request form and in the CPD report.
- H. For security purposes, EHR accounts may be deactivated after four months of inactivity and may require the individual to complete an EHR refresher training.
1. If an account was deactivated due to inactivity, the sponsor and HI Manager must approve before account reactivation.

2. Requests for a user role change such as modification to an existing role, creation of a new user role, etc., must be directed to the HI Manager for review and approval.
- I. This policy applies to all staff, including employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at OSH, and other persons who request access to the EHR.
- J. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services, Shared Services, and Oregon Health Authority policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- K. Staff who fail to comply with this policy or related procedures may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

“Electronic health record (EHR)” means health-related information on an individual that is created, gathered, managed, and consulted by authorized staff.

“Health Insurance Portability and Accountability Act of 1996 (HIPAA)” and its regulations (the "Privacy Rule" and the "Security Rule") protect the privacy of an individual’s health information, and governs the way health care providers collect, maintain, use and disclose protected health information (“PHI”).

“Minimum necessary” means using or disclosing the smallest amount of PHI necessary to complete the job and is a guiding principle from the HIPAA privacy regulations.

“Need to know” means the minimum amount of PHI needed to complete a particular job and is a guiding principle from the HIPAA privacy regulations.

“Sponsor” means the OSH employee ultimately responsible for the supervision, management, and monitoring of the requestor’s presence and need for EHR access. In this policy, “sponsor” may also refer to the sponsor’s designee with signing authority.

“Staff” includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. ATTACHMENTS

Attachment A Avatar Account Creation Process

V. RELATED OSH POLICIES AND PROTOCOLS

1.014 Data governance

2.104 Medical record maintenance and transportation

6.045 Clinical documentation

9.010 Interns

VI. REFERENCES

42 CFR § 482.24.

42 U.S.C. § 1320.

45 CFR § 160.

45 CFR § 162.

45 CFR § 164.

Department of Human Services/Oregon Health Authority. *Access Control Policy*, 090-003. Author.

ODHSIOHA Office of Information Services Individual Access Request, MSC 0786 [Office of Information

Services form].

Joint Commission Resources, Inc. (2024). *The joint commission comprehensive accreditation manual for hospitals*, IM.01.01.01 — IM.03.01.01. Oakbrook Terrace, IL: Author.

Joint Commission Resources, Inc. (2024). *The joint commission comprehensive accreditation manual for hospitals*, RC.01.04.01 EP 1. Oakbrook Terrace, IL: Author.

Oregon Revised Statute § 179.505.

Oregon state hospital confidentiality and access agreement, OSH-STK 76113 [form].